

IN THE HIGH COURT OF JHARKHAND AT RANCHI
A.B.A. No.1215 of 2020

Chotu Khan @ Md. Minhaz Sheikh Petitioner
Versus
The State of Jharkhand Opposite Party

CORAM : HON'BLE MR. JUSTICE ANIL KUMAR CHOUDHARY

For the Petitioner : Mr. Vishal Kumar, Advocate
For the State : Mr. Azeemuddin, A.P.P

Order No.03 Dated- 02.03.2020

Apprehending his arrest in connection with Jamua P.S. Case No.251 of 2019 instituted under Section 79 of the Juvenile Justice Act, 2015 and Section 14 (i) of the Child Labour (Prohibition & Regulation) Act, the petitioner has moved this Court for grant of privileges of anticipatory bail.

Heard learned counsel appearing for the petitioner and learned A.P.P appearing for the State.

Learned counsel appearing for the petitioner submits that the allegation against the petitioner is that the petitioner has employed a minor boy aged twelve years in his hotel. It is submitted that the allegation against the petitioner is false. It is then submitted that the petitioner never engaged that boy and the petitioner even does not know him. It is also submitted that the co-accused, with similar allegations, has already been given the privileges of anticipatory bail by this Court vide order dated 06.01.2020 passed in A.B.A. No.8997 of 2019. It is lastly submitted that the petitioner is ready and willing to co-operate with the investigation of the case and to pay ad interim victim compensation of Rs.15,000/- without prejudice to his defence in this case in favour of the victim namely- Vikash Kumar @ Guddu. Hence, it is submitted that the petitioner be given the privileges of anticipatory bail.

Learned A.P.P appearing for the State opposes the prayer for anticipatory bail of the petitioner.

Considering the submissions of learned counsels and the facts and circumstances stated above, I am inclined to grant privileges of anticipatory bail to the petitioner. Accordingly, the petitioner is directed to surrender in the Court of learned Judicial Magistrate, 1st Class, Giridih within four weeks from today and in the event of his arrest or surrendering, the petitioner will be enlarged on bail on depositing a demand draft of Rs.15,000/- as ad interim victim

compensation without prejudice to his defence in this case drawn in favour of the victim namely- Vikash Kumar @ Guddu and on furnishing bail bond of Rs.25,000/- (Twenty five thousand) with two sureties of the like amount to the satisfaction of learned Judicial Magistrate, 1st Class, Giridih in connection with Jamua P.S. Case No.251 of 2019 **with the condition that he will co-operate with the investigation of the case and appear before the investigating officer as and when noticed by him and furnish his mobile number and photocopy of the Aadhar Card with an undertaking that he will not change his mobile number during the pendency of the case** and subject to the conditions as laid down under Section 438(2) of the Code of Criminal Procedure.

In case the petitioner deposits the said demand draft, the court below is directed to issue notice to the victim namely- Vikash Kumar @ Guddu and on his proper identification, the court below shall handover the same to him forthwith.

(Anil Kumar Choudhary, J.)

Animesh/